

prevailing party lies in the court's sound discretion" and that "determination must be upheld unless there is a manifest abuse of discretion." (*Elster*, 211 Cal.App.3d at 1443.)

Therefore, the court finds, in its discretion, respondent meets the definition of the prevailing party.

Attorney Fee Calculation

Respondent seeks an award of attorney's fees of \$19,255.75 incurred in this CHRO action, plus additional attorney's fees incurred in filing this motion. (Mot for Atty Fees at 12.) Respondent states a total of 35.75 hours were expended on the Placer County proceedings by two attorneys. (*Id.* at 10.) Respondent states counsel spent 5.5 hours preparing the motion for attorney's fees, incurring \$2,722.50 in fees, at the hourly rate of \$495.00 per hour. (Theodoropoulos Decl., ¶ 21.) Respondent states Constantine M. Panagotacos is a partner with over 15 years of civil litigation experience with an hourly rate of \$695.00 in the San Francisco Bay Area. (Theodoropoulos Decl., ¶¶ 15-16.) Respondent states Christina Theodoropoulos is an associate with an hourly rate of \$495.00 in the San Francisco Bay Area. (*Id.*)

Petitioner disputes, at minimum, the itemized invoices above which amount to \$7,280.00. (Supp. Opp'n at 5.) Petitioner also disputes the remaining total (\$19,255.75-\$7,280.00 or \$11,975.75) as not reasonable in a matter without discovery or contested hearings. (*Id.*)

The court notes petitioner specifically disputes 14.5 hours expended of the 35.75 total hours claimed by respondent. (See Supp. Opp'n at 2-5.) Although petitioner disputes the 2.25 hours to appear for the hearing, the dismissal had not been processed in time for the hearing. The court also observes respondent's counsel rates for the San Francisco Bay Area of \$495 and \$695, respectively, are unreasonable for a CHRO action in Placer County. The court notes this case was dropped at the hearing. Therefore, in its discretion, the court awards attorney's fees to respondent for 26.5 hours (the difference of 35.75 hours and the 14.5 hours disputed by the petitioner with adding 2.25 hours to appear at the January 9, 2026 hearing and 3 hours for the filing of this motion) at \$400 per hour (the high end attorney fee rate for a CHRO action in Placer County) for a total of \$10,600 in attorney's fees plus costs of \$59.50.

Conclusion

Accordingly, in its discretion, the court grants respondent's motion for attorney's fees and costs to respondent, as the prevailing party, and awards \$10,600, plus costs of \$59.50.

12. S-CV-0057018 King, Ted Arthur v. Tarver, Russell Lee

The motion to vacate judgment in S-CV-0042357 is continued to **August 28, 2026 at 8:30 a.m. in Department 1** to be heard by **Commissioner S. Dehr**. Department 1 is located at 101 Maple Street, Auburn, California 95603